

Judgment Sheet**PESHAWAR HIGH COURT, ABBOTTABAD BENCH**

(JUDICIAL DEPARTMENT)

Cr. M (BA) No.326-A/2026**Noor Muhammad.***...(Petitioner)***versus****The State, etc.***... (Respondents)*

Present: *Mr. Shad Muhammad Khan, Advocate for petitioners.*

Mr. Basharat Khan, Additional Advocate General for State.

Date of hearing: **21.05.2026**

ORDER

SYED MUDASSER AMEER, J.- This single order disposes of the instant bail petition moved by petitioner Noor Muhammad as well as connected Cr. M No.329-A/2026 titled *Mst. Asima Bibi, etc. v. The State, etc.*, moved by petitioners Mst. Asima Bibi wife of Shabbir and Mst. Madiha Bibi wife of Faisal, as both petitions arise out of FIR No.549 dated 02.05.2026 registered under sections 371-A and 371-B PPC at Police Station City, Mansehra.

2. Petitioner Noor Muhammad also filed Cr. M No.106-A/2026 seeking correction of FIR number mentioned in the

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bail petition on the ground that due to inadvertence the FIR number was typed as 540 instead of 549. The application is allowed. Office shall make necessary correction.

3. Heard. Record perused.

4. As per contents of the FIR, on receipt of a public complaint regarding alleged use of a rented house situated at Tanki Mor, Mansehra for prostitution, the local police conducted a raid whereupon petitioner Madiha Bibi along with petitioner Noor Muhammad were allegedly found in one room, whereas petitioner Asima Bibi along with one Saifullah, who allegedly escaped from the spot, were found in another room.

5. Significantly, there is no allegation in the FIR that the present petitioners or any other person was engaged in buying, selling, trafficking, hiring or commercial dealing of any human being for purposes of prostitution. There is also no allegation that any money was recovered, any customer was found negotiating such transaction, or that any material indicative of organized prostitution or trafficking was secured during the raid.

6. Sections 371-A and 371-B PPC are intended to curb trafficking, sale, purchase and commercial exploitation of human beings for purposes of prostitution. Mere allegation

of immoral conduct or mere presence of a male and female inside a private premises does not ipso facto attract the said provisions unless material exists showing buying, selling, hiring, trafficking or commercial sexual exploitation of a person. Reference in this regard may be made to *Khalida Bibi and another v. The State and others* (2024 P Cr. LJ 1972), *Bilal Jan v. The State* (2021 P Cr. LJ 323), *Mst. Kainat v. The State* (2016 YLR 974) and *Shafqat Ali v. The State* (2009 YLR 60).

7. The contents of the FIR, even if accepted at their face value, do not prima facie disclose the essential ingredients of sections 371-A or 371-B PPC. At best, the allegations merely suggest presence of opposite genders inside a private house. Such circumstance by itself does not constitute the offences alleged. In *Khalida Bibi and another v. The State and others* (2024 P Cr. LJ 1972), it was specifically held that even where a male and female are found in an objectionable condition, sections 371-A and 371-B PPC are not automatically attracted unless material exists showing sale, purchase or hiring of a person for prostitution.

8. The manner in which the raid was conducted also raises serious legal and constitutional concerns. Admittedly, the raid was carried out at a private dwelling

house without obtaining any search warrant from a Magistrate and without associating respectable persons of the locality. Such intrusion into a private home, particularly involving arrest of women, directly touches upon the constitutional guarantees relating to dignity of man, privacy of home and liberty protected under Articles 4, 9 and 14 of the Constitution. In *Salman Ghazanfar v. The State* (2018 MLD 1446), this Court observed that raid at a private premises without obtaining search warrant and without compliance of section 103 Cr.P.C. amounted to unlawful intrusion prohibited by law. Similar view was expressed in *Mst. Kainat v. The State* (2016 YLR 974) and *Mohabat v. State* (2019 YLRN 51 Karachi).

9. Courts have repeatedly cautioned that under the garb of offences relating to prostitution and immorality, constitutional protections available to citizens cannot be permitted to be violated through arbitrary police action founded merely upon suspicion, anonymous complaints or spy information. In *Mohabat v. State* (2019 YLRN 51 Karachi), it was observed that no police official should be allowed immunity for degrading dignity and reputation of citizens through unlawful intrusion into private life.

10. Even otherwise, where allegations merely relate to consensual intercourse or fornication, prosecution, if any,

could only proceed through complaint under section 203-C Cr.P.C. and not through registration of FIR under sections 371-A and 371-B PPC. Guidance in this regard may also be sought from *Khalida Bibi and another v. The State and others* (2024 P Cr. LJ 1972).

11. For what has been discussed above, the case of the present petitioners, at the very least, falls within the ambit of further inquiry under section 497(2), Cr.P.C. Reference may also be made to *Akhtar v. Khawas Khan and others* (2024 SCMR 476).

12. Accordingly, both these bail petitions are allowed. The petitioners are admitted to post-arrest bail subject to furnishing bail bonds in the sum of Rs.100,000/- each with two sureties in the like amount to the satisfaction of the learned trial Court.

13. These are the reasons for the short orders of even date.

ANNOUNCED.

21.05.2026

(Jamil)

J U D G E

Hon'ble Mr. Justice Syed Mudasser Ameer.